

25LBCV03430 25LBCV03430

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Case Number: 25LBCV03430 Hearing Date: July 28, 2026 Dept: S28

BACKGROUND

Plaintiffs,

Mario Casale, by and through his successor-in-interest, Malcolm Casale, as well as Malcolm Casale and Vera Casale in their individual capacities, filed this action against Defendants, Bay Breeze Care, Inc. and CHLB, LLC for dependent adult abuse, negligence, and wrongful death. The crux of the complaint is that Decedent, a disabled adult with schizophrenia, while he was a resident at Bay Breeze, suffered two violent attack at the hands of a co-resident in close temporal proximity to each other, and ultimately succumbed to the injuries suffered in the attacks.

On

May 19, 2026, the Court sustained Bay Breeze's demurrer to the first cause of action for Dependent Adult Abuse without leave to amend. The first cause of action remained viable as to Defendant CHLB, LLC, and the second and third causes of action remain viable against all Defendants.

On

June 2, 2026, Plaintiffs filed the instant motion for relief from that Order.

On

June 29, 2026, the Court entered a stipulation between Defendant CHLB, LLC and Plaintiffs to dismiss the First Cause of Action for Dependent Adult Abuse to the extent that cause of action is asserted against Defendant CHLB, LLC.

On

July 15, 2026, Bay Breeze filed an opposition.

On July 21, 2026, Plaintiffs filed a reply.

DISCUSSION

Applicable

Law

Code

of Civil Procedure section 473, subdivision (b) provides for either discretionary or mandatory relief from certain prior actions or proceedings in the trial court. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124.)

“

‘Under the discretionary relief provision, on a showing of “mistake, inadvertence, surprise, or excusable neglect,” the court has discretion to allow relief from a “judgment, dismissal, order, or other proceeding taken against” a party or his or her attorney. Under the mandatory relief provision, on the other hand, upon a showing by attorney declaration of “mistake, inadvertence, surprise, or neglect,” the court shall vacate any “resulting default judgment or dismissal entered.” [Citation.] Applications seeking relief under the mandatory provision of section 473 must be ‘accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.’ The mandatory provision further adds that ‘whenever relief is granted based on an attorney’s affidavit of fault [the court shall] direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.’ ” (*Ibid.*; Code Civ. Proc., § 473, subd. (b).)

“[W]hen

relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court...[Citation.]” (*Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 981-82.)

Analysis

Plaintiffs

argue that the Court should vacate the May 19, 2026 Order sustaining Bay Breeze's demurrer to the first cause of action without leave to amend. (Mot. at p. 2.) Plaintiffs contend that as a result of a clerical calendaring error, Plaintiffs failed to timely file their opposition to Defendant's demurrer. (Ibid.) Plaintiffs contend that their failure to seek leave to amend before the hearing was also due to a calendaring error. Plaintiffs further argue that to the extent their meet and confer efforts were insufficient, the Court cannot sustain or overrule a demurrer due to defective meet and confer per CCP § 430.41(a)(4). Plaintiffs further assert that relief is warranted under the discretionary provision because the order resulted from counsel's mistake, inadvertence, and excusable neglect, and also independently warranted under the mandatory provision because Plaintiffs have submitted an attorney affidavit of fault. (Id., p. 4.)

Bay Breeze argues that mandatory relief is not available as a demurrer sustained without leave is not a default and the attorney affidavit does not automatically trigger mandatory relief. (Opp., p. 2.) Bay Breeze further contends that Plaintiffs are not entitled to discretionary relief as the claimed error is not limited to the failure to calendar a known hearing date. Bay Breeze asserts that several months elapsed between the parties' meet and confer regarding the Demurrer, counsel's receipt of the Court's March 3 order continuing the demurrer to May 19, and no substantive opposition or amended pleading was filed. Bay Breeze further contends that the Court's ruling sustaining the demurrer without leave to amend as to the Elder Abuse action was not caused by the calendaring error, but by deficiencies existing on the face of the pleading.

Here,

Plaintiffs' counsel submits a declaration that he failed to timely oppose the demurrer or seek leave to file a first-amended complaint due to calendaring errors. The Court finds this sufficient to grant discretionary relief under the statute, which is designed to protect litigants from the mistakes of their Counsel. While the Court found substantive defects as the basis for sustaining the demurrer, Plaintiffs' failure to timely oppose the Demurrer was the basis for the Court denying leave to amend to cure those defects. Plaintiffs are correct that deficient meet and confer cannot be the sole basis to sustain or overrule a demurrer, but the Court also admonishes Plaintiffs' Counsel to be proactive in meeting and conferring before a demurrer is filed in order to avoid the unnecessary motion practice that has resulted from their failure to do so. It appears that Plaintiffs' counsel was long aware of the Complaint's

deficiencies and was prepared to cure them, but inexplicably chose to wait until a demurrer was filed to seek leave to amend, and then failed to actually do so due to their own mistake. However, due to Plaintiffs' Counsel's calendaring mistake, the Court will give Plaintiffs another chance to file a First-Amended Complaint as to the First Cause of Action for Dependent Adult Abuse.

While

Bay Breeze argues that the proposed First Amended Complaint is still deficient, that is a question that may be taken up on another demurrer and is not properly before this Court on this Motion.

CONCLUSION

Plaintiffs'

Motion for Relief Pursuant to CCP §473(b) is GRANTED. Plaintiffs proposed First Amended Complaint submitted with the motion shall be filed and served within two court days of the date of this Order.

Moving party to give notice.